

24SMCV00436 24SMCV00436

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-03

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Case Number: 24SMCV00436 Hearing Date: September 3, 2026 Dept: P

Tentative

Ruling

Rim

Mahfoud v. Peter Anthony Letizia, et al., Case No. 24SMCV00436

Plaintiff's

Motion to Enforce Settlement

Hearing

Date: September 3, 2026

Motion

to Enforce Settlement

On January

29, 2024, Plaintiff Rim Mahfoud, in pro per, sued Defendants Peter Anthony Letizia, Wonder Nights, LLC d/b/a Byblos Restaurant, and Does 1-10 for breach of contract, fraud, negligence, conversion, unjust enrichment, and breach of the covenant of good faith and fair dealing. On May 30, 2025, the parties filed a settlement agreement. On June 10, 2025, the Court signed a stipulation and order for settlement.

On July

31, 2026, Plaintiff filed this Motion to Enforce Settlement. As of September 1, 2026, the Court has not received any opposition.

"If

parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc. § 664.6, subd. (a).)

When

considering a motion to enforce a settlement under § 664.6, the court seeks to determine whether the parties entered into a valid and binding settlement of all or part of the case. (In re Marriage of Assemi (1994) 7 Cal.4th 896, 905.) A party moving for entry of judgment under § 664.6 need not establish a breach of the settlement agreement; the court is authorized to enter judgment pursuant to the settlement regardless of whether the settlement's obligations were performed, breached or excused. (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1184–1185.)

Plaintiff seeks to

enter judgment pursuant to settlement agreement filed with the court on May 30, 2025. The Court retained jurisdiction over this matter pursuant to Code of Civil Procedure § 664.6. (See Stipulation and Order for Settlement (June 10, 2025), ¶ 10.) The Court finds that the parties have entered an enforceable agreement pursuant to the terms of the settlement agreement.

Plaintiff's

evidence establishes that Defendants owe \$7,000 under the settlement agreement, plus \$476.16 in recoverable interest. (Id. at ¶ 2.; Mahfoud Decl., ¶ 12.)

The motion

to enforce is therefore GRANTED.

The Court

enters judgment in favor of Plaintiff Rim Mahfoud and against Defendants in the amount of \$7,476.16.